

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index #  
Date of filing:

-----X  
D.R., an infant by her Mother and Natural Guardian,  
AGNES CAPRIO and AGNES CAPRIO, individually,

Plaintiffs designate Bronx  
County as the place of trial

Plaintiffs,

Basis of the venue is the Locus  
of Occurrence

-against-

### **SUMMONS**

THE CITY OF NEW YORK, POLICE SERGEANT  
ROBERT DURST, POLICE OFFICER TARALENA  
GERRATO and JOHN AND JANE DOES-Police  
Officers as yet unidentified,

Plaintiffs reside at  
707 East 242<sup>nd</sup> Street, Apt. # 4J  
Bronx, New York 10470

Defendants.

County of Bronx

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### **TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

#### **Defendant's address:**

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

#### **Plaintiff's attorneys:**

RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

POLICE SERGEANT ROBERT DURST

Tax ID #: 946686  
c/o New York City Police Department- 47<sup>th</sup>  
Precinct  
4111 Laconia Avenue  
Bronx, New York 10466

POLICE OFFICER TARALENA GERRATO

c/o New York City Police Department- 47<sup>th</sup>  
Precinct  
4111 Laconia Avenue  
Bronx, New York 10466

Dated: Brooklyn, New York  
August 30, 2017

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
D.R., an infant by her Mother and Natural Guardian,  
AGNES CAPRIO and AGNES CAPRIO, individually,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE SERGEANT  
ROBERT DURST, POLICE OFFICER TARALENA  
GERRATO and JOHN AND JANE DOES-Police  
Officers as yet unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF D.R., AN INFANT BY  
HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

1. That at all times hereinafter mentioned, plaintiffs were and still is are residents of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on February 23, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on May 17, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiffs were held.

6. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK employed POLICE SERGEANT ROBERT DURST, as an agent, servant and/or employee.

7. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK employed POLICE OFFICER TARALENA GERRATO as an agent, servant and/or employee.

8. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK employed JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

9. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, D.R., was lawfully present at or about the premises located at 707 East 242<sup>nd</sup> Street, more specifically the hallway in front of apartment 4J, County of Bronx, City and State of New York.

10. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, D.R., was approached and was assaulted and battered at the aforesaid premises and injured due to the use of a taser/stun gun by defendants, POLICE SERGEANT ROBERT DURST and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

11. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, the discharge of the taser by POLICE SERGEANT ROBERT DURST, was in violation of police guidelines and protocol relating to the use or discharge of a taser.

12. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, POLICE SERGEANT ROBERT DURST, discharged his taser /stun gun striking the infant plaintiff, D.R., despite prior knowledge that the infant plaintiff, D.R., was

pregnant at the time.

13. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, the discharge of the taser/stun gun by POLICE SERGEANT ROBERT DURST, upon the infant plaintiff, D.R., was performed knowingly, intentionally and willingly.

14. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery and discharge of a taser upon the infant plaintiff, D. R., was performed knowingly, intentionally and willfully.

15. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery and discharge of the taser/stun gun upon the infant plaintiff, D. R., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

16. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, assault, battery and discharge of the taser/stun gun upon the infant plaintiff, D. R., was without probable cause and was not the result of an appropriate arrest.

17. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

18. By the reason of the foregoing, the infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF D. R., AN INFANT  
BY HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

19. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "18" herein, as though more fully set forth herein at length.

20. That defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and discharged a taser/stun gun and violated the civil rights of the infant plaintiff, D.R.

21. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

22. By the reason of the foregoing, the infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
ARREST ON BEHALF OF D.R., AN INFANT BY  
HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

23. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "22" herein, as though more fully set forth herein at length.

24. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the infant plaintiff, D.R.

25. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on

reasonable grounds and not founded upon an arrest warrant.

26. That as a result of the aforesaid false arrest and confinement, infant plaintiff, D.R., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

27. By the reason of the foregoing, infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF D. R., AN INFANT  
BY HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

28. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "27" herein, as though more fully set forth herein at length.

29. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the infant plaintiff, D.R.

30. That the defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

31. By the reason of the foregoing, infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON  
BEHALF OF D. R., AN INFANT BY HER MOTHER  
AND NATURAL GUARDIAN, AGNES CAPRIO**

32. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "31" herein, as though more fully set forth herein at length.

33. That the defendant, THE CITY OF NEW YORK, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

34. Said action including the improper use and discharge of the taser upon the infant plaintiff, D.R., were a direct violation of the New York City Police Department guidelines and protocol.

35. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, D.R.,

36. That as a result of said intentional and negligent acts, the infant plaintiff, D.R., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

37. By reason of the foregoing, the infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS  
PROSECUTION ON BEHALF OF D.R., AN INFANT  
BY HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

38. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and

realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "37" herein, as though more fully set forth herein at length.

39. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report and accusatory instrument in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

40. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

41. That on February 10, 2017, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, loss of earnings and suffered emotional and physical distress and injury.

42. By reason of the foregoing, infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF D.R., AN INFANT  
BY HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

43. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "42" herein, as though more fully set forth herein at length.

44. That the defendant, THE CITY OF NEW YORK, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA



GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, who assaulted, battered and improperly discharged a taser/stun gun on the infant plaintiff, D.R., in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

45. That the defendant, THE CITY OF NEW YORK, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the infant plaintiff, D.R., of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

46. The defendants had deprived the infant plaintiff, D.R. by their actions of her civil rights as guaranteed by statute.

47. That the assault, battery and improper discharge of a taser/stun gun was in violation of the civil rights of the infant plaintiff, D.R., more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

48. That the deprivation by the defendants of infant plaintiff's civil rights was a result of said defendant, THE CITY OF NEW YORK, including but not limited defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendant, THE CITY OF NEW YORK.

49. That the defendants' actions were not privileged or immune.

50. That the defendant, THE CITY OF NEW YORK, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of her civil rights.

51. By the reason of the foregoing, the infant plaintiff, D. R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF D.R., AN INFANT  
BY HER MOTHER AND NATURAL GUARDIAN, AGNES CAPRIO**

52. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "51" herein, as though more fully set forth herein at length.

53. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

54. The actions of the POLICE SERGEANT ROBERT DURST, in discharging his taser/stun gun knowingly upon the pregnant infant plaintiff, D. R., were malicious, willful and grossly negligent.

55. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of its agents, servants and/or employees, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

56. By the reason of the foregoing, the infant plaintiff, D.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR NEGLIGENCE  
ON BEHALF OF D.R., AN INFANT BY HER MOTHER  
AND NATURAL GUARDIAN, AGNES CAPRIO**

57. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "56" herein, as though more fully set forth herein at length.

58. That the defendant, THE CITY OF NEW YORK, and its agents, servants and/or employees, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, was negligent in the use and improper discharge of a taser/stun gun on the infant plaintiff, D.R.

59. That the defendant, THE CITY OF NEW YORK, and its agents, servants and/or employees, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, failed to act as responsible prudent police officers would under the circumstances.

60. That the defendant, THE CITY OF NEW YORK, and its agents, servants and/or employees, including but not limited to defendants, POLICE SERGEANT ROBERT DURST, POLICE OFFICER TARALENA GERRATO and JOHN AND JANE DOES-Police Officers as yet unidentified, failed to follow proper police procedure and proper police guidelines and protocol.

**AS AND FOR A TENTH CAUSE OF ACTION FOR LOSS OF  
SERVICES ON BEHALF OF AGNES CAPRIO, AS MOTHER  
AND NATURAL GUARDIAN OF INFANT, D.R.**

61. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "60" herein, as though more fully set forth herein at length.

62. That at all times hereinafter mentioned, the plaintiff, AGNES CAPRIO, was the lawful Mother and Natural Guardian of the infant plaintiff, D.R., and as such said plaintiff, AGNES CAPRIO, was entitled to the society and services of said infant plaintiff, D.R.

63. By reason of the afore-described negligence of defendants, the plaintiff, AGNES CAPRIO, was deprived of the society and services of the infant plaintiff, D.R., and shall forever be deprived of said society and services.

64. As a result of herein above, plaintiff, AGNES CAPRIO, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, D.R.

65. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, AGNES CAPRIO, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

**WHEREFORE**, plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Assault and Battery**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **First** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Negligent Hiring and Retention**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Second** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for False Arrest**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Third** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for False Imprisonment**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Fourth** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Intentional and Negligent Infliction of Emotional Distress**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Fifth** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Malicious Prosecution**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Sixth** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Civil Rights Violation**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Seventh** Cause of Action; plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Punitive Damages**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Eighth** Cause of Action;

plaintiff, D.R., an infant by her Mother and Natural Guardian, AGNES CAPRIO, **for Negligence**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Ninth** Cause of Action; plaintiff, AGNES CAPRIO, Mother and Natural Guardian of the infant plaintiff, D.R., **for Loss of Services**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Tenth** Cause of Action; together with attorneys fees and the costs and disbursements of this action.

DATED: Brooklyn, New York  
August 30, 2017

  
Yours, etc.,

SCOTT E. RYNECKI, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiffs  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.: 17DR02-10

**ATTORNEY'S VERIFICATION BY AFFIRMATION**

SCOTT E. RYNECKI, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a Partner at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

**SUMMONS AND COMPLAINT**

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York  
August 30, 2017

  
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SCOTT E. RYNECKI, ESQ.